



Delaware County Commissioners Meeting April 17th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=ul6uhs2oL9w
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Municipal Meeting Summary Report

Meeting Body: Delaware County Commissioners

Meeting Date: April 17, 2023

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing: Rail Spur Lease and Purchase Agreement (00:01:28)
- **Summary of Discussion:** Brad Bookout worked to secure business utilization for the rail spur installed in 2014 using Economic Development Administration (EDA) funds from the U.S. Department of Commerce (subject to a 15-year control period expiring in 2029). A long-term lease agreement has been reached with Smyrna Ready Mix (SRM) to take over the property, including an option to purchase at the end of the lease in 2029. While the county's initial construction contribution was approximately \$1.5 to \$1.8 million, the lease is projected to net the county about \$3.5 million.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Called to order at 9:05 AM on Monday, April 17, 2023, by Presiding Officer Shannon Henry.
 - **Attendance:**
 - **Present:** Mr. Henry (Presiding Officer), Mr. King, Mr. Riggin, Mr. Brooke.
 - **Absent:** None noted.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:**
 - Held a moment of silence in memory of long-time council member and local icon Jane Lasseter.
 - Recited the Pledge of Allegiance.
 - **Approval of Minutes:**
 - Minutes from the April 3, 2023 meeting were approved. (*Roll call vote: Passed Unanimously*)
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4. Substantive Business & Board Action

- **00:05:07 Appointment to Travel and Tourism Commission**
 - **Sponsor / Presenter:** Board Commissioners
 - **Deliberation Summary:** Consideration of Sally Piper for appointment to the board. She is retired and available to serve during the Friday morning meeting times.
 - **Action & Vote Disposition:** Appointed Sally Piper. (*Roll call vote: Passed Unanimously*)
- **00:05:59 Presentation & Donation: Delaware County Fairgrounds Building**
 - **Sponsor / Presenter:** Dan White (Delaware County Fair) / Daniel and Pablo Garcia (Direct Structures)
 - **Deliberation Summary:** Direct Structures offered to donate a fully enclosed 24x26 foot building (9 feet tall, matching existing fairground color scheme with an overhead door and man-door) to be placed near the John Wright Park corner. It will be used year-round primarily for 4-H storage, in exchange for sponsorship visibility and fair week promotional benefits for the donors (who recently purchased the Teamster building on the bypass).
 - **Action & Vote Disposition:** Accepted the building donation to county property. (*Roll call vote: Passed Unanimously*)
- **00:09:01 Juvenile Probation & Electronic Monitoring / JUMP Program Update**
 - **Sponsor / Presenter:** Jeff Hanser (Chief Probation Officer) & Emily Stoltz (JUMP Program Coordinator)

- **Deliberation Summary:**
 - Provided an update on the Judicial Users Manufacturing Partnership (JUMP) program launched in January, which has grown from 131 active cases in March to 157 active cases. The program is expanding beyond manufacturing into landscaping, pest control, and food service (Pizza King) alongside Ivy Tech certifications.
 - Addressed the rising cost of juvenile electronic monitoring. Historically funded via the state JDAI (Juvenile Detention Alternatives Initiative) grant (\$55,000 total annual grant, capped at 25% or \$10,000 for electronic monitoring), rising costs and reduced local placement options (such as the loss of the Youth Opportunity Center emergency shelter) have created budgetary strains. Requested that the Commissioners consider absorbing the roughly \$20,000 monitoring cost to free up grant funds for community-based youth programs.
- **Action & Vote Disposition:** Item tabled to review county balances and budget options. *(No final vote taken)*
- **00:24:37 Interlocal Agreement: State Road 32 Bridge over White River**
 - **Sponsor / Presenter:** Board Commissioners / Legal Counsel
 - **Deliberation Summary:** The City of Muncie is taking over State Road 32 from the state following improvement work, including the newly fixed bridge over the White River on East Jackson Street near the wire mill. Because state law places county bridges under county control, a 50-year interlocal agreement was drafted to lease/transfer control of the bridge to the city, making the city responsible for maintenance and federal-compliant inspections.
 - **Action & Vote Disposition:** Approved interlocal agreement. *(Roll call vote: Passed Unanimously)*
- **00:26:26 Lease Agreement: Rail Spur (SRM)**
 - **Sponsor / Presenter:** Board Commissioners / Brad Bookout
 - **Deliberation Summary:** Formalizes the 6-year lease and purchase option agreement with Smyrna Ready Mix (SRM) for the rail spur property, generating \$3.5 million for the county. SRM has pledged \$9.5 million in infrastructure improvements (building a cement mix silo) and will place the parcels back onto the tax rolls.
 - **Action & Vote Disposition:** Approved the rail lease agreement. *(Roll call vote: Passed Unanimously)*
- **00:28:42 Ordinance 2023-012: Comprehensive Zoning Ordinance Amendment (Second Reading)**
 - **Sponsor / Presenter:** Kathy Van Nice (Ashton Land Surveyor)
 - **Deliberation Summary:** Second reading for a parcel south of 3605 South Whitney Road to rezone a property from R2 to R3 so it can be combined into a single legal parcel. Property owners (the Lees) purchased the adjacent tracts under mismatched zonings/contracts before discovering the R2 portion fell below county acreage minimums upon paying off the contract.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Adopted Ordinance 2023-012. *(Roll call vote: Passed Unanimously)*
 - **00:31:04 Memorialization of Fairgrounds Grandstands**
 - **Sponsor / Presenter:** Commissioner John / Board Commissioners
 - **Deliberation Summary:** Proposed naming the fairgrounds grandstands the "Jane Lasseter Memorial Grandstands" (or similar) to honor the long-time council member's extensive work and dedication to the fairgrounds. A formal resolution will be drafted for the next meeting.
 - **Action & Vote Disposition:** Approved motion to name the fairgrounds grandstands in memory of Jane Lasseter. *(Roll call vote: Passed Unanimously)*
 - **00:33:31 Payment of Claims**
 - **Sponsor / Presenter:** Board Commissioners
 - **Deliberation Summary:** Review and approval of county claims totaling \$1,738,151.63.
 - **Action & Vote Disposition:** Approved payment of claims. *(Roll call vote: Passed Unanimously)*
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5. Open Public Comment / Citizen Forum

- **00:03:29 Ricky Answer** (Muncie newsman and author): Expressed questions regarding the rail spur lease, questioning whether infrastructure is being given away similarly to a past jail deal, voiced concerns about competition with regional concrete supplier IML, and suggested taxpayers need relief from mounting economic development and borrowing costs.
 - **00:34:07 Ricky Answer** (Muncie newsman and author): Returned during general public comment to note that recent property tax bills and tax districts (especially Yorktown) increased significantly. Urged the board to consider granting local property tax relief during upcoming summer and fall budget cycles to offset rising property taxes and local debt.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Formal resolution for the Jane Lasseter Memorial Grandstands will be presented at the next meeting.
 - BW Construction is scheduled to provide an update next month on the mental health and addiction facility.
- **Adjournment:** The meeting was recessed/adjourned via a approved motion. *(Roll call vote: Passed Unanimously)*

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